

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON**ANDREW FIGORS**
Plaintiff,

File No: 2024-001507-DC

vs.

**ORDER REGARDING MOTION
TO SHOW CAUSE****EMILY WATSON**

Hon. Jenny L. McNeill

Defendant.

The Plaintiff filed a Motion to Show Cause on or about 4/11/24. The Court has reviewed the file; and the Plaintiff's Motion; and Orders as follows:

The Plaintiff's request for a show cause is denied. This case was just filed and there are no orders in place, so the Defendant cannot be held in Contempt of Court. The Plaintiff cites a criminal statute, and this a civil domestic case. Further, the statute specially refers to a lawful court order. There is no court order currently in place. The parties have a Facilitative Information Gathering Conference set for April 26, 2024. Custody will be addressed at this conference.

The Plaintiff is attempting to use an improper process. Previously, the Plaintiff filed an Extreme Risk Protection Action, purportedly in an attempt to gain custody, which is not relief that is allowed under that statute. While the Plaintiff is representing himself, he must still follow the law. Under MCR 1.109, a party pleading a frivolous claim is subject to costs. A claim is considered frivolous if it is not allowed by law. The Court cautions the Plaintiff, that if improper motions continue to be filed, the Plaintiff will be subject to costs and/or sanctions. The Plaintiff must only file such motions as allowed by law.

IT IS SO ORDERED.

Dated: 4/12/24
HON. JENNY L. MCNEILL
CIRCUIT COURT JUDGE